

1.

| CASE #      | CASE NAME                      | HEARING NAME                                                                            |
|-------------|--------------------------------|-----------------------------------------------------------------------------------------|
| CVMV2510529 | CRUMP vs BANK OF AMERICA, N.A. | MOTION FOR INTERPLEADER AND DISCHARGE PURSUANT TO CODE OF CIVIL PROCEDURE SECTION 386.5 |

**Tentative Ruling:** No tentative ruling; appearances requested, either in person or telephonically.

2.

| CASE #      | CASE NAME                   | HEARING NAME                                                   |
|-------------|-----------------------------|----------------------------------------------------------------|
| CVRI2406558 | HOSSENI vs PHILLIP PFEIFER. | MOTION TO BE RELIEVED AS COUNSEL FOR FIRST QUALITY BUILDS, LLC |

**Tentative Ruling:** No tentative ruling; appearances requested, either in person or telephonically.

3.

| CASE #      | CASE NAME                   | HEARING NAME                         |
|-------------|-----------------------------|--------------------------------------|
| CVRI2406558 | HOSSENI vs PHILLIP PFEIFER. | DEMURRER TO SECOND AMENDED COMPLAINT |

**Tentative Ruling:**

The Court OVERRULES the special demurrers. The Court SUSTAINS the general demurrer to the 2nd cause of action with 30 days leave to amend. The Court SUSTAINS the general demurrer to the 6th causes of action without leave to amend.

**Factual / Procedural Context:**

Plaintiffs Seyed Farshid Hosseini and First Quality Builds, LLC allege that Hosseini and his wife moved from Washington to California based on a pre-approval mortgage that was supposed to be in his name; however, the loan ended up being in his company's name, First Quality Builds. He alleges Defendants treated him as the true borrower, including issuing him an IRS Form 1098 mortgage interest statement to him personally. Plaintiff fell into financial hardship in 2023, and applied to the California Mortgage Relief program, yet Defendants continued the foreclosure process resulting in a nonjudicial foreclosure sale on 10/24/24. The Second Amended Complaint asserts causes of action for: (1) wrongful foreclosure; (2) violation of Homeowner Bill of Rights; (3) unfair competition; (4) breach of the covenant of good faith and fair dealing; (5) quiet title; and (6) declaratory relief.